

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                           |                                                                                                                                                                                                                                  |
|---------------------------------------------------|-------------------------------------|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Lesley Henry                     | Team:<br>Team # 5                   | CCRB Case #:<br>200900307 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 01/05/2008 7:30 AM  | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>7/5/2009    | Precinct:<br>113                                                                                                                                                                                                                 |
| Date/Time CV Reported<br>Mon, 01/05/2009 12:00 AM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 01/08/2009 3:03 PM                                                                                                                                                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Sean Rocco        | 29264  | 937396 | 113 PCT |
| 2. POM Dennis Jaeger     | 09389  | 940297 | 113 PCT |
| 3. SGT Fitzroy Vigilance | 04583  | 918667 | 113 PCT |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. POM Patrick Nozdrovicky | 24663     | 939125 | 113 PCT  |
| 2. POM Joseph Bentivegna   | 13790     | 934482 | 113 PCT  |
| 3. POM Robert Nutter       | 30250     | 925842 | PBQ/S    |

| Officer(s)                | Allegation                                                                            | Investigator Recommendation |
|---------------------------|---------------------------------------------------------------------------------------|-----------------------------|
| A . SGT Fitzroy Vigilance | Abuse: SGT Fitzroy Vigilance supervised the entry and search of § 87(2)(b) in Queens. | A . Complaint Withdrawn     |
| B . POM Dennis Jaeger     | Abuse: PO Dennis Jaeger drew his gun.                                                 | B . Complaint Withdrawn     |
| C . POM Sean Rocco        | Force: PO Sean Rocco used physical force against § 87(2)(b)                           | C . Complaint Withdrawn     |
| D . POM Dennis Jaeger     | Force: PO Dennis Jaeger used physical force against § 87(2)(b)                        | D . Complaint Withdrawn     |

## Synopsis

On January 5, 2008, at approximately 7:35am, § 87(2)(b) stood on the porch of § 87(2)(b) in Queens. SGT Fitzroy Vigilance and Officers Sean Rocco, Patrick Nozdrovicky, Dennis Jaeger, Joseph Bentivegna, and Robert Nutter responded to the location for a reported assault and encountered § 87(2)(b). PO Jaeger allegedly approached with his gun drawn and he and PO Rocco questioned § 87(2)(b). PO Rocco and PO Jaeger grabbed § 87(2)(b) by his arms and threw him against the handrail on the steps. They then threw him on his car located in the driveway and placed him in handcuffs.

The officers entered § 87(2)(b) in order to investigate the reported call. § 87(2)(b) asked aloud for the name and shield numbers of all of the officers, but did not direct his question to anyone in particular. § 87(2)(b) was transported to the 113<sup>th</sup> Precinct stationhouse and was charged with disorderly conduct and resisting arrest. § 87(2)(a) 160.50

§ 87(2)(b) filed this complaint with the CCRB one year after the incident date because he did not wish to file a complaint against police officers in the same precinct where he lived. In October 2008, § 87(2)(b) moved out of the confines of the 113th Precinct and subsequently decided to report the above incident. § 87(2)(g)

On January 6, 2009, § 87(2)(b) filed a complaint with the Internal Affairs Bureau and a spin-off case was received by the CCRB on January 8, 2009. IAB log 09-00600 noted the date of incident as January 5, 2009; however, § 87(2)(b) verified that the date of occurrence was January 5, 2008 during his sworn testimony. On January 23, 2009, § 87(2)(b) provided a telephone statement to the CCRB and provided a sworn statement on January 29, 2009. § 87(2)(b) provided the undersigned investigator with a two-page letter detailing his complaint which he stated had previously been submitted to the Internal Affairs Bureau, but was not forwarded with his complaint. SGT Vigilance and Officers Rocco, Nozdrovicky, Bentivegna, Jaeger and Nutter were identified as officers present during the incident and were all interviewed between February 20 and June 24, 2009, with the exception of PO Nutter, who was not interviewed. On July 17, 2009, § 87(2)(b) was shown a photo array of possible subject officers after which, he asked why black officers did not appear in the photo arrays. The undersigned investigator explained that only one black officer was identified as being present at the location and it was not necessary to include him in a photo array. On July 30, 2009, the undersigned investigator received a letter from § 87(2)(b) requesting to withdraw his complaint. The letter was notarized on July 27, 2009. A follow-up letter was received on August 18, 2009 again requesting that the CCRB withdraw § 87(2)(b)'s complaint. On August 18, 2009, the undersigned investigator called § 87(2)(b) to inform him that his complaint has been formally withdrawn and he will receive a letter after the case has been reviewed by the board.

Based on § 87(2)(b)'s request, it is recommended that this case be closed as complaint withdrawn.

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: